

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam

Civil Rule No.833(con) of 2019

Md. Sayed Ali Pathan and others.

..... petitioners.

Vs.

Abdur Rahim Sheikh and another.

..... Opposite-Parties.

Mr. Ali Ahsan Mullah, Advocate.

..... for the petitioners.

No one appears.

.....for the opposite-parties.

Heard and Judgment on: 25th February, 2024.

This Rule was issued calling upon the opposite-party No.1 to show cause as to why the delay of 218 days in filing the revisional application against order dated 03.10.2018 passed by the learned District Judge, Chandpur in Civil Revision No.33 of 2018 rejecting the same upon affirming the order dated 26.04.2018 passed by the learned Joint District Judge, 1st Court, Chandpur in Title Appeal No.53 of 2012, should not be set aside.

The relevant fact giving rise to this rule, in short, is that the petitioner filed the instant Civil Revision against the order dated 03.10.2018 passed by the learned District Judge, Chandpur in Civil Revision No.33 of 2018 rejecting the same upon affirming the order dated 26.04.2018 passed by the learned Joint District Judge, 1st Court, Chandpur in Title Appeal No.53 of 2012.

Being aggrieved by and dissatisfied with the said order the petitioners preferred this revisional application which is out of time by 218 days.

Mr. Ali Ahsan Mullah, learned Advocate appearing for the petitioners submits that the petitioners are rural illiterate persons and they were not aware of the legal procedure of the Court as a result due to lack of proper legal advice, subsequently the petitioner No.8 came to the learned Advocate for taking legal advice about this case then he advised to take step filing this revision. He submits that the petitioners filed an application for obtaining certified copy of impugned order on 16.05.2019 and received the same on 25.06.2019. Thereafter, the petitioners collected necessary papers and documents and the same was produced to the learned Advocate on 04.08.2019 and filed the revisional application on 08.08.2019 and that time for preferring Civil Revision has already been expired. He submits that delay of 218 days in filing the Civil Revision is unintentional delay for which prayed for condone the delay in filing the Civil Revision for the end of justice. He lastly submits that if the delay is not condoned the petitioner will suffer irreparable loss and injury.

Although, the notice was duly served upon the opposite parties but no one appears for the opposite-parties to oppose the Rule.

I have gone through the application and other material on record and considered the submission of the learned Advocate for the petitioners.

Although the Limitation Act does not provide for any Specific period of Limitation for invoking discretionary jurisdiction of this Court under section 115 of the Code of Civil Procedure but a long standing practice one has to file it without causing inordinate delay.

It appears that Section 5 of the Limitation Act has empowered to allow an application for a revision beyond the period of limitation if the petitioner can satisfy the Court that he had sufficient cause for not preferring the revision application within the period of limitation. Considering the facts, circumstance and materials on record, it appears that the petitioners filed an application for obtaining certified copy of the impugned order and accordingly received the same on 25.06.2019. Thereafter they conducted their learned Advocate who informed them that time for preferring Civil Revision has already been expired and prepared the revisional application taking the ground for obtaining certified copy can be treated sufficient ground to condone the delay in filing the revisional application. The grounds taken by the petitioners are humanitarians which should not be ignored. The cause of was beyond the control of the applicant. The petitioners did not act negligently; rather they were diligent in filing the revisional application.

Ordinarily a litigant does not stand to benefit by lodging an appeal or revision late. Refusing to condone delay can result in a meritorious matter being thrown out at the very threshold and cause of justice being defeated. As against this when delay is condoned

the highest that can happen is that a case would be decided on merits after hearing the parties.

In view of the above, I find merit in the Rule to condone the delay of 218 days in filing the revisional application.

In the result, the Rule is made absolute, however, without any order as to cost. The delay of 218 days in filing the Civil Revision is hereby condoned.

The office is directed to do the needful forthwith. The petitioner may take necessary step for hearing the Revisional application in the appropriate Bench.

Md. Abadul Haque/ Bench Officer.